

26VECV02350 26VECV02350

County: los-angeles

Division: Civil Law and Motion

Department: 107

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Case Number: 26VECV02350 Hearing Date: September 14, 2026 Dept: 107

SUPERIOR COURT OF THE STATE OF
CALIFORNIA

COUNTY OF LOS ANGELES

NORTHWEST DISTRICT

Robert Graham,

Plaintiff,

v.

City of Los Angeles, et al.

¿¿

Defendants.

Case Number Department

26VECV02350 107

COURT'S [TENTATIVE]

ORDER RE:

Demurrer without Motion to Strike¿

[THE FOLLOWING IS A TENTATIVE RULING IN THE ABOVE CASE]:

Sustain with leave to amend.

I.

BACKGROUND

Plaintiff

filed this slip-and-fall action against defendants the City of Los Angeles, the State of California, the Superior Court of California, the County of Los Angeles, and Does 1-50 on April 21, 2026. He has since dismissed his claims against the City and State. On June 29, 2026, he identified Doe 1 as the Judicial Council of California by fictitious name amendment.

The

Judicial Council of California ("Defendant") now demurs to Plaintiff's complaint based on Plaintiff's failure to comply with government claims requirements. Plaintiff opposes the demurrer.

II.

MEET

AND CONFER

¿

California Code of Civil Procedure

section¿430.41, subdivision (a) requires parties to "meet and confer in person, by telephone, or by video conference" before the filing of a demurrer to attempt to resolve the objections raised in the demurrer.¿ The demurring party is required to file and serve with the demurrer a declaration either confirming that parties were unable to resolve the issues raised by the demurrer despite having met and conferred or that the opposing party failed to meet and confer with the demurring party in good faith. (Code Civ. Proc., §¿430.41, subd. (a)(3).)

Defendant's counsel's declaration does not

establish she met and conferred with Plaintiffs' counsel in person, by telephone, or via videoconference. She did not comply with section 430.41. The Court proceeds to the substance of the demurrer because Counsel exchanged substantial email correspondence; the spirit of section 430.41 is satisfied.

However, the Court suggests counsel review their meeting-and-conference obligations more carefully in the future to avoid unnecessary delay.

III.

LEGAL

STANDARD

“A demurrer tests the pleading alone, and not the evidence or the facts alleged.” (E-Fab, Inc. v. Accountants, Inc. Servs. (2007) 153 Cal.App.4th 1308, 1315.) As such, the court assumes the truth of the complaint’s properly pleaded or implied factual allegations. (Id.) The court also considers “judicially noticed matters.” (Id.) A complaint must contain “[a] statement of the facts constituting the cause of action, in ordinary and concise language.” (Code Civ. Proc., § 425.10, subd. (a)(1).) A “complaint ordinarily is sufficient if it alleges ultimate rather than evidentiary facts.” (Doe v. City of Los Angeles (2007) 42 Cal.4th 531, 550.)

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IV.

REQUEST FOR JUDICIAL

NOTICE

Defendant requests judicial notice of (1) Plaintiff’s complaint, (2) the amendment identifying Defendant as Doe 1, (3) Plaintiff’s Government Claim form signed December 12, 2025, and (4) a witness declaration in support of Defendant’s demurrer.

Requests 1 and 2 are denied as unnecessary. The records are within the Court’s file.

Request 3 is granted.

Requested 4 is denied.
The declaration is not a proper subject of judicial notice.

V.

DISCUSSION

Defendant demurs on
the ground that Plaintiff failed to timely submit a government claim prior to
filing suit.

Defendant relies on
Government Code section 915(c)(4):

"A claim, any amendment thereto, or an application for
leave to file a late claim shall be presented to a judicial branch entity in
accordance with the following means:

... (4) Delivering or mailing it to the Administrative
Director of the Judicial Council, if against the Judicial Council or the
Administrative Office of the Courts."

At Defendant's
request, the Court has taken judicial notice of Plaintiff's government claim.
The claim states that it was submitted to the Office of Court Counsel for the
Superior Court of California, County of Los Angeles – not to the Administrative
Director of the Judicial Council, as required by section 915(c)(4).

Plaintiff argues
Defendant should be equitably estopped from relying on the claims requirement
because the form used to submit his claim bears the heading "Government Claim –
Judicial Branch". According to Plaintiff, Defendant may not author a form suggesting
he can submit his claim to an entity other than the Administrative Director,
then rely on Plaintiff's submission of that form to defeat Plaintiff's claim.

However, Plaintiff's
facts that purport to establish equitable estoppel do not appear on the face of
Plaintiff's complaint. His allegations and the judicially-noticed materials
establish he did not comply with section 915(c)(4), and he has failed to allege
an excuse from compliance.

The demurrer is
sustained.

VI.
LEAVE

TO AMEND

"Where

the defect raised by a motion to strike or by demurrer is reasonably capable of cure, 'leave to amend is routinely and liberally granted to give the plaintiff a chance to cure the defect in question.'" (CLD Construction, Inc. v. City of San Ramon (2004) 120 Cal.App.4th 1141, 1146.)

Plaintiff

contends he may plead facts that excuse him from the claims requirement. The Court permits him leave to do so.

IV.

CONCLUSION

For

the foregoing reasons, the court sustains the demurrer. Plaintiff is granted leave to amend within thirty (30) days of this order.

Dated: September 14, 2026

Hon. Eric Harmon

Judge of the Superior Court